



## YO ELIGIBILITY UNDER NY STATE LAW: WORKSHEET FOR ELIGIBILITY & IMMIGRATION ISSUES

**Important Note: This Document Is An Internal Worksheet for RIAC Purposes Only. Please Do Not Rely Upon It Without Speaking Directly To the RIAC**

### OVERVIEW: WHY OBTAINING A YO DESIGNATION IS SO IMPORTANT FOR IMMIGRATION CONSEQUENCES

Whether or not foreign-born client receives youthful offender status is often the most important issue regarding potential immigration consequences, because it avoids a “conviction” under immigration law. *Matter of Devison*, 22 I&N Dec. 1362 (BIA 2000):

- (1) An adjudication of youthful offender status pursuant to Article 720 of the New York Criminal Procedure Law, which corresponds to a determination of juvenile delinquency under the Federal Juvenile Delinquency Act, 18 U.S.C. §§ 5031-5042 (1994 & Supp. II 1996), does not constitute a judgment of conviction for a crime within the meaning of section 101(a)(48)(A) of the Immigration and Nationality Act, 8 U.S.C. § 1101(a)(48)(A) (Supp. IV 1998).
- (2) Under New York Law, the resentencing of a youthful offender following a violation of probation does not convert the youthful offender adjudication into a judgment of conviction.

A YO disposition avoids almost all grounds of deportability – and many of the grounds of inadmissibility (such as admitting the commission of a crime involving moral turpitude). *Devison* at 1365 (“We have consistently held that juvenile delinquency proceedings are not criminal proceedings, **that acts of juvenile delinquency are not crimes**, and that findings of juvenile delinquency are not convictions for immigration purposes” (emphasis added)).

NOTE: YO disposition only involves whether someone is convicted of, or committed a crime. The allegations underpinning a YO can still have immigration consequences, such as denial of discretionary applications, negative impact on good moral character and conduct-based grounds which do not require a criminal offense. *Wallace v. Gonzales*, 463 F.3d 135 (2nd Cir. 2006) (judicially-confirmed misconduct which ends up the subject of a YO can still be used against a non-citizen for immigration purposes - in that case, the exercise of discretion).

## YOUTHFUL OFFENDER ELIGIBILITY UNDER NY CPL 720:

### A Three Step Process

#### I. **QUESTION 1: DOES THE DEFENDANT MEET AGE REQUIREMENTS?**

- **Are they a "Youth"?** CPL 720.10(1) ("[A] person charged with a crime alleged to have been committed when he was at least sixteen years old and less than nineteen years old or a person charged with being a juvenile offender as defined in subdivision forty-two of section 1.20 of this chapter." (emphasis added))

#### II. **QUESTION 2: IF THE DEFENDANT MEETS THE AGE REQUIREMENTS, IS HE BARRED FROM CLASSIFICATION AS AN "ELIGIBLE YOUTH" (BASED ON THE STATUTE OF CONVICTION, OR PRIOR CRIMINAL / YO HISTORY)?**

- Is he an "Eligible Youth"?
  - You are an eligible youth unless one of the bars applies, per CPL 720.10(2):
    - CPL 720.10(2)(a) The conviction to be replaced is:
      - (i) a class A-I or class A-II felony
      - (ii) an armed felony as defined in subdivision forty-one of section 1.20, except as provided in subdivision three, or
      - (iii) rape in the first degree, criminal sexual act in the first degree, or aggravated sexual abuse, except as provided in subdivision three
    - CPL 720.10(2)(b) You have been previously convicted for a felony; or
    - CPL 720.10(2)(c) You have previously been adjudicated a youthful offender following conviction of a felony or has been adjudicated a juvenile delinquent who committed a designated felony act. (Unless the prior YO was for prostitution under CPL 170.80, see CPL 720.25)
  - Even if they are barred from being an "Eligible Youth", does one of the exceptions to that bar apply?
    - CPL 720.10(3) Exception applies only to "armed felony offense or of rape in the first degree, criminal sexual act in the first degree, or aggravated sexual abuse" (i.e. not the other class A-I or A-II felonies); and
    - CPL 720.10(3) Court must determine the following factors exist:

- Mitigating circumstances that bear directly upon the manner in which the crime was committed; or
- Where the defendant was not the sole participant in the crime, the defendant's participation was relatively minor although not so minor as to constitute a defense to the prosecution

**III. QUESTION 3: IF DEF IS AN "ELIGIBLE YOUTH" (EITHER BY RIGHT, OR BY EXCEPTION), THE COURT EITHER (1) MUST GIVE YO (IF IN LOCAL COURT / DEF HAS NO PRIORS), OR (2) CONSIDERS WHETHER THEY DESERVE YO DISPOSITION (IN SUPERIOR COURT AND / OR DEF HAS PRIORS)**

**A. STEP 1: A PSI MUST BE ORDERED**

CPL 720.20(1) requires that, after a conviction of an eligible youth, the court **must** (1) order a PSI, then (2) at the time of sentencing, determine "whether or not the eligible youth is a youthful offender."

**B. STEP 2A (CONVICTION IN LOCAL COURT / NO PRIORS):**

If the conviction is in local court **and** def has no priors or prior YO's - a YO disposition is mandatory. "Where the conviction is had in a local criminal court and the eligible youth had not prior to commencement of trial or entry of a plea of guilty been convicted of a crime or found a youthful offender, the court **must** find he is a youthful offender." (emphasis added) CPL 720.20(1)(b)

**C. STEP 2B (CONVICTION IN NON-LOCAL COURT / SOME PRIORS):**

If the conviction is not in local court, or the def has prior conviction or prior YO, then CPL 720.20(1) requires the Court to decide "If in the opinion of the court the interest of justice would be served by relieving the eligible youth from the onus of a criminal record and by not imposing an indeterminate term of imprisonment of more than four years, the court may, in its discretion, find the eligible youth is a youthful offender".

**IMPORTANT NOTE: ATTORNEYS SHOULD NOT PURSUE A CPL 720.20(5) PETITION (FOR RETROACTIVE YO) WITHOUT FIRST CONSULTING THEIR RIAC**

Although CPL 720.20(5) allows for petitions to retroactively be classified as a Youthful Offender, these should not be filed for foreign-born clients **without first receiving advice from an immigration expert** like the RIACs: such an order may not be recognized under immigration law.<sup>1</sup>

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<sup>1</sup> If a court grants retroactive YO status exclusively based on grounds (b)(ii), (iii), (iv) and/or (v) (which all relate to who the defendant was and what they did at the time of the offense), there could be an argument that it still fits within *Matter of Devison* / it may still be equivalent to a FJDA delinquency finding - albeit just on a slightly longer timeframe. It would essentially be a reconsideration of the original decision, based on the original factors.

But even then, immigration agencies may believe this is essentially a vacatur based upon rehabilitative facts – and therefore not recognize the reclassification under federal law, citing *Matter of Pickering*, 23 I&N Dec. 621 (BIA 2003). Additionally, the merest mention of post-conviction rehabilitation (or any of the other 720.20(5)(b) factors) would probably put it squarely outside *Devison*, leaving them with a conviction for immigration purposes notwithstanding the retroactive YO...

## I. EXAMPLE CASE INFORMATION

- 18yo at the time of the alleged offense
- Alleged to have used a pistol to beat and rob someone
- Charged with
  - Robbery 1st 160.15(3) ([forcibly steals property and] Uses or threatens the immediate use of a dangerous instrument [in the course of commission or immediate flight therefrom])
  - Assault 1st 120.10(1) ([intentionally] causes [serious physical injury] by means of a deadly weapon or a dangerous instrument)
  - Attempted Assault 1st 110-120.10(1) (see above)
  - Assault 2<sup>nd</sup> 120.05(2) ([intentionally] causes [physical injury] by means of a deadly weapon or a dangerous instrument)

## II. ANALYSIS OF MANDATORY CLASSIFICATION AS AN "ELIGIBLE YOUTH"

### A. OVERVIEW

The only disqualification from “eligible youth” which could apply to this case is CPL 720.10(2)(a)(ii) (applying if the conviction being replaced is an "armed felony").<sup>2</sup> The text of CPL 1.20(41) (defining "armed felony" offenses) is:

"[A]ny violent felony offense defined in section 70.02 of the penal law that includes as an element either:

"(a) possession, being armed with or causing serious physical injury by means of a deadly weapon, if the weapon is a loaded weapon from which a shot, readily capable of producing death or other serious injury may be discharged; or

"(b) display of what appears to be a pistol, revolver, rifle, shotgun, machine gun or other firearm."

On this basis, there are three questions which must be answered:

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<sup>2</sup> Because none of this client’s charges are A-I, or A-II felonies (which would trigger CPL 720.10(2)(a)(i)) or rape 1<sup>st</sup>, criminal sexual act 1<sup>st</sup> or aggravated sexual abuse (which would trigger CPL 720.10(2)(a)(iii))

## WORKED EXAMPLE - POSSIBLE ARMED FELONY

### B. IS A VIOLENT FELONY INVOLVED?

All of this client's charges are listed within N.Y.P.L. § 70.02, so any YO would necessarily replace a violent felony.

### C. DO THE CHARGES REQUIRE A PROSCRIBED ACT RELATING TO A QUALIFYING DEADLY WEAPON?

#### 1. **Do The Charges Require A Proscribed Act?**

The proscribed acts are "[p]ossession, being armed with or causing serious physical injury by means of...[a qualifying weapon]" under N.Y.P.L. § 1.20(41)(a).

Two of this client's charges all necessarily meet the *prohibited act* criteria:

- Assault 1<sup>st</sup> 120.10(1) (**causes [serious physical] injury [...] by means of** a deadly weapon or a dangerous instrument" = possesses, is armed with or causes serious physical injury).<sup>3</sup>
- Assault 2<sup>nd</sup> 120.05(2) ("causes [physical injury] [...] **by means of a deadly weapon** or a dangerous instrument = possesses or is armed with some kind of weapon (but not, "causing *serious* physical injury by means of" a qualifying weapon).<sup>4</sup>

Two of this client's charges probably do not meet the *prohibited act* criteria:<sup>5</sup>

- Attempted Assault 1<sup>st</sup> 110-120.10(1) (N.Y.P.L.'s requirements for an attempt mean that the defendant need not – *as an element of the offense* – have actually possessed, been armed with or cause serious physical injury by means of a deadly weapon).
- Robbery 1<sup>st</sup> 160.15(3) ("Uses **or threatens** the immediate use of a dangerous instrument" = no need to actually possess, be armed with or cause injury by any weapon; utterance of mere words would suffice);

On this basis, the CPL 720.10(2)(a)(ii) disqualification from eligible youth status should not apply if the client is only convicted of Attempted Assault 1<sup>st</sup> sub 1, or Robbery 1<sup>st</sup> sub 3.

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<sup>3</sup> See next section for discussion of the inclusion of "dangerous instrument".

<sup>4</sup> See next section for discussion of the inclusion of "dangerous instrument".

<sup>5</sup> Please note: this issue has not been extensively researched for this memo, so should not be relied upon without further inquiry.

## WORKED EXAMPLE - POSSIBLE ARMED FELONY

### 2. Do The Charges Require A Qualifying Deadly Weapon?

Under CPL 1.20(41)(a), the thing you possess/use etc. must be a "a deadly weapon, if the weapon is a loaded weapon from which a shot, readily capable of producing death or other serious injury may be discharged". (emphasis added) CPL 1.20(41)(a). In other words:

- The NYPL definition of deadly weapon is not enough. (NYPL deadly weapon is at § 10.00(12), namely "any loaded weapon from which a shot, readily capable of producing death or other serious physical injury, may be discharged, ~~or a switchblade knife, gravity knife, pilum ballistic knife, metal knuckle knife, dagger, billy, blackjack, plastic knuckles, or metal knuckles.~~" (stricken text is exempted by CPL 1.20(41)(a)); and
- Assuming the categorical approach applies, it would also **exclude** offenses which could encompass NY-defined "dangerous instrument" under N.Y.P.L. § 10.00(13).

On that basis, we can see that none of this client's charges even require a deadly weapon (or firearm) as an element - they could all instead be satisfied by some kind of dangerous instrument (which is not mentioned in CPL 1.20(41)'s definition of armed felony):

- Robbery 1st 160.15(3) ("Uses or threatens the immediate use of a **dangerous instrument**" = no "deadly weapon" or firearm necessarily required)
- Assault 1st 120.10(1) (causes such injury to such person or to a third person by means of a deadly weapon **or a dangerous instrument** = no "deadly weapon" or firearm necessarily required)
- Attempted Assault 1st 110-120.10(1) (same – but the defendant need not have even had physical contact with a dangerous instrument, let alone a deadly weapon or firearm)
- Assault 2nd 120.05(2) (causes such injury to such person or to a third person by means of a deadly weapon **or a dangerous instrument** = no "deadly weapon" or firearm necessarily required)

Even if some kind of *modified* categorical approach was allowed (for example to see whether Assault 1<sup>st</sup> was divisible between its deadly weapon **or** dangerous instrument provisions), it should not matter: The CPL definition of "armed felony" is not co-extensive with the N.Y.P.L.'s definition of "deadly weapon" (CPL's "armed felony" excludes knives which cannot be discharged – whereas N.Y.P.L.'s deadly weapon includes them).

As such, even *if* a modified categorical approach applies and it were found that the defendant is convicted of the "deadly weapon" portion, it should *still* not be a match to an "armed felony" and thus should not disqualify the client from eligible youth status.

### 3. Do The Charges Require Display of A Firearm (etc.)?

## WORKED EXAMPLE - POSSIBLE ARMED FELONY

As discussed above, none of the charges explicitly require “display of what appears to be a pistol, revolver, rifle, shotgun, machine gun or other firearm.” They instead all require a dangerous instrument and / or deadly weapon.

D. IF CLIENT IS CLASSIFIED AS AN “ELIGIBLE YOUTH”, DO THEY RECEIVE A YO ON A MANDATORY OR DISCRETIONARY BASIS?

Because this defendant could not enter a plea to any of the current charges in local court (he is post-indictment), he is subject to **discretionary** consideration of YO disposition (under CPL 720.20(1)(a)).

As such, he would have to convince the court that: the interest of justice would be served by relieving the eligible youth from the onus of a criminal record and by not imposing an indeterminate term of imprisonment of more than four years, the court may, in its discretion, find the eligible youth is a youthful offender")

As I see it, the only way this defendant could end up mandatory YO (as opposed to discretionary) is either:

- If this case was still pre-indictment (i.e. still in the local court), and he agreed to plead to a lesser included / replacement misdemeanor (Cf. CPL 220.10 for plea bargaining restrictions – which are important, as a plea outside of this is jurisdictionally defective); or
- Everyone agreed to dismiss the indictment and the client plead to a new misdemeanor offense in local court